



CHAPTER lii.

An Act to empower the lord mayor aldermen and citizens of the city of Portsmouth to acquire lands compulsorily and to establish thereon an aerodrome undertaking to confer powers upon them with respect to their tramways and electricity undertakings and for other purposes.

A.D. 1930.

[15th April 1930.]

WHEREAS the city of Portsmouth (in this Act referred to as "the city") is a county borough within the meaning of the Local Government Act 1888 and is subject to the jurisdiction of the lord mayor aldermen and citizens of the city (in this Act referred to as "the Corporation"):

And whereas it is expedient that the Corporation should establish within the city an aerodrome and works and conveniences connected therewith and should be empowered to acquire lands for those purposes:

And whereas the Corporation are the owners of a system of tramways within the city and it is expedient that they should be empowered to substitute trolley vehicle systems on the routes thereof as by this Act provided:

And whereas it is expedient that further powers should be conferred upon the Corporation with respect to their tramway and electricity undertakings:

[Price 1s. 6d. Net.]

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And whereas estimates have been prepared by the Corporation in relation to the purchase of lands and for the purposes of the aerodrome undertaking of the Corporation in respect of which they are by this Act authorised to borrow money and such estimates amount to one hundred and forty-two thousand pounds :

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years as by this Act provided :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas a plan of the lands by this Act authorised to be acquired and a book of reference to such plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerk of the peace for the county of Southampton which plan and book of reference are in this Act respectively referred to as the deposited plan and book of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Portsmouth Corporation Act 1930.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Aerodrome undertaking.

Part IV.—Trolley vehicles &c.

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Part V.—Electricity.

Part VI.—Finance.

Part VII.—Miscellaneous.

3. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) so far as the same are applicable to the purposes of and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act : Incorporation of Acts.

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section.

4. Subject to the provisions of this Act and unless the subject or context otherwise requires the several words and expressions to which by the Acts incorporated with this Act and by the Public Health Acts meanings are assigned shall in this Act have in relation to the relative subject-matter the same respective meanings And in this Act— Interpretation.

“ The city ” means the city of Portsmouth ;

“ The Corporation ” means the lord mayor aldermen and citizens of the city ;

“ The council ” means the council of the city ;

“ The Minister ” means the Minister of Health ;

“ The town clerk ” and “ the treasurer ” mean respectively the town clerk and the treasurer of the city and respectively include any person duly appointed by the Corporation to discharge temporarily the duties of any such officers ;

“ The Act of 1898 ” means the Portsmouth Corporation Tramways Act 1898 ;

“ The Order of 1900 ” means the Portsmouth Corporation Tramways Order 1900 ;

“ The Act of 1920 ” means the Portsmouth Corporation Act 1920 ;

“ The Lands Clauses Acts ” means those Acts and the Acquisition of Land (Assessment of Compensation) Act 1919 ;

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- “ The arbitrator ” means the arbitrator to whom any question of disputed compensation is referred under the provisions of this Act ;
- “ The Public Health Acts ” means the Public Health Act 1875 and the Acts amending and extending the same ;
- “ The aerodrome undertaking ” means the aerodrome undertaking of the Corporation as from time to time authorised including any subsidiary business connected therewith ;
- “ The tramway undertaking ” means the tramway undertaking of the Corporation as from time to time authorised ;
- “ Trolley vehicle ” means a mechanically propelled vehicle adapted for use without rails upon roads and moved by electrical power transmitted thereto from some external source ;
- “ Road authority ” means with reference to any road or part of a road over which any proposed trolley vehicle service will pass the authority company or person charged with or liable to contribute to the maintenance of such road or part of a road ;
- “ The electricity undertaking ” means the electricity undertaking of the Corporation as from time to time authorised ;
- “ The electricity limits ” means the limits within which the Corporation are from time to time authorised to supply electricity ;
- “ Daily penalty ” means a penalty for every day on which any offence is continued after conviction ;
- “ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the city ;
- “ Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any

county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation; A.D. 1930.

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed; and

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

PART II.

LANDS.

5. Subject to the provisions of this Act the Corporation may for the purposes of the aerodrome undertaking enter upon take use and hold the lands hereinafter described in the city which are delineated on the deposited plan and described in the deposited book of reference (that is to say):— Power to acquire lands.

Certain lands in the city bounded on the west by the Southern Railway on the north and east by high-water mark of ordinary tides in Port Creek and Langstone Harbour and on the south by a line drawn from the said high-water mark at a point forty-seven yards south-east of the present northern terminus of Eastern Road along the

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northern boundary fence of the Great Salterns golf course and the ditch running from the north-west corner of that golf course to a point on the Southern Railway three hundred yards south of Straight Lane.

Power to
stop up
roads and
footpaths.

6.—(1) The Corporation may stop up any road or footpath situate upon any of the lands shown on the deposited plan when the lands on both sides of any such road or footpath have been acquired by the Corporation and thereupon all rights of way over and along the same shall be extinguished.

(2) The Corporation may appropriate and use for the purposes of the aerodrome undertaking the site of the portion of road or footpath stopped up as far as the same is bounded on both sides by land of the Corporation and the site of such road or footpath shall be vested in them.

(3) The Corporation shall make full compensation to all parties interested in respect of any such rights (being private rights of way) and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

Period for
compulsory
purchase of
lands.

7. The powers granted by this Act for the compulsory purchase of lands shall cease on the first day of October one thousand nine hundred and thirty-three.

Correction
of errors in
deposited
plan and
book of
reference.

8. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the city for the correction thereof and if it appear to the justices hearing the application that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Southampton and a duplicate thereof shall also be deposited with the town clerk and such certificate and duplicate respectively shall be kept by such clerks respectively with the other

documents to which the same relate and thereupon the deposited plan or book of reference shall be deemed to be corrected according to such certificate and the Corporation may take the lands and execute the works in accordance with such certificate.

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9. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may (if they think fit) subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

10. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Corporation shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

As to private rights of way over lands taken compulsorily.

11. In settling any question of disputed purchase money or compensation for lands acquired by the Corporation under this Act the arbitrator shall not award any sum of money for or in respect of any improvement or alteration made or any building erected after the first day of November one thousand nine hundred and twenty-nine if in the opinion of the arbitrator the improvement alteration or building in respect of which the claim is made was made or erected with a view to obtaining or increasing compensation nor in the case of any estate or interest in the lands created after the said date which in the opinion of the arbitrator was created with a view to obtaining or increasing compensation shall any sum of money be awarded so as to increase the total amount of compensation which would otherwise have been required to be paid in respect of the acquisition of such lands.

Compensation in case of recently altered buildings.

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Power to
enter upon
property for
survey and
valuation.

12. The Corporation and their surveyors officers contractors and workmen may at all reasonable hours in the daytime upon giving in writing for the first time twenty-four hours' and afterwards twelve hours' previous notice enter upon and into the lands and premises by this Act authorised to be taken and used by them for the purpose of surveying and valuing the same without being deemed trespassers and without being subject or liable to any fine penalty or punishment for entering or continuing upon any part of the said lands and premises.

Works
below high-
water mark
not to be
constructed
without
consent of
Board of
Trade.

13. The Corporation shall not under the powers of this Act construct on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Corporation shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the Corporation and the amount of such costs and charges shall be a debt due from the Corporation to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt.

Powers with
reference to
leases of
lands.

14.—(1) The Corporation may accept a surrender of any lease or letting of lands granted by them and in their discretion grant either to the lessee or tenant under the surrendered lease or letting or to any other person a new lease or letting of all or any of the lands leased or let by the surrendered lease or letting and may grant reversionary leases of all or any of such lands as aforesaid.

(2) The Corporation may enter into and carry into effect any agreement for or with respect to the surrender or grant of any such lease or letting and may in any such

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lease letting or agreement give to the lessee or tenant or intended lessee or tenant an option or right to purchase the fee simple in reversion or other the reversionary interest of the Corporation of or in all or any of the lands leased or let or agreed to be leased or let at such time and on such terms and conditions as may be determined by the Corporation in their discretion :

Provided that the Corporation shall not without the consent of the Minister lease any such lands or any interests therein at a rent or for a consideration of a value less than the current market value of such lands or interests but a lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained :

Provided also that nothing in this section shall be taken to dispense with the consent of any Government department to any lease of any lands of the Corporation in any case in which such consent would have been required if this Act had not been passed.

15. The powers of the Corporation of purchasing lands by agreement shall be deemed to extend to and to authorise the purchase by the Corporation by agreement of any lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be acquired by them for the purposes of any local Act or Order relating to the Corporation.

Purchase of
lands for
exchange.

16. The Corporation may enter into and carry into effect agreements with the owners of or other persons interested in any land which may be acquired under the provisions of any local Act or Order relating to the Corporation or which may be in the neighbourhood of any street improvement authorised by any such Act with respect to the reinstatement of such owners or other persons and with respect to the exchange of lands for that purpose and the Corporation may pay or receive money for equality of exchange.

Power to
reinstate
owners of
property.

17.—(1) The Corporation may with the consent of the Minister lay out and develop any lands belonging to the Corporation and not required for the purposes for which they were acquired and may erect and maintain houses shops offices warehouses and other buildings and construct sewer pave flag channel and kerb streets roads

Power to
develop
lands.

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and ways on any of such lands and may sell lease exchange or otherwise dispose of any such lands houses shops offices warehouses or buildings upon and subject to such terms conditions and restrictions as they may think fit.

(2) The Corporation may also grant building leases of any such lands as aforesaid subject to such restrictions and conditions as the Corporation may see fit to impose and may grant any easements rights or privileges in under or over such lands or any part or parts thereof and may use or dispose of the building or other materials of any houses and premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

(3) The Corporation in selling or disposing of such lands may attach to the same and may convey or lease the same subject to any conditions and restrictions upon the use thereof and as to the buildings to be erected thereon and as to the use to which such buildings may be put.

(4) The Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any of the lands to which this section applies at a price or rent or for a consideration of a value less than the current market value of such lands but a purchaser or lessee shall not be concerned to inquire whether the direction of the Minister is necessary or has been obtained.

(5) The provisions of this section shall not apply to any lands acquired or appropriated by the Corporation for the purposes of education.

PART III.

AERODROME UNDERTAKING.

Aerodrome
under-
taking.

18.—(1) The Corporation upon the lands shown on the deposited plan and described in the deposited book of reference or some part thereof may establish an undertaking comprising an aerodrome and works together with all proper and convenient hangars garages repair shops buildings refreshment-rooms offices approach roads footpaths works conveniences and equipment connected therewith and may carry on in connection

therewith any subsidiary business certified by the Air Council to be ancillary to the carrying on of an aerodrome. A.D. 1930.

(2) The Corporation may carry on maintain and manage the aerodrome undertaking and may make such charges in respect thereof as they may think fit and may grant a lease of or let the same or any part thereof for such period and upon and subject to such terms and conditions as they may think fit :

Provided that the charges to be made in respect of the aerodrome shall be subject to the approval of the Secretary of State for Air.

(3) The aerodrome undertaking shall be in the same relation to the Air Council and the Secretary of State for Air and subject to the like control by them under the Air Navigation Act 1920 or any Act amending replacing or consolidating the same as if this Act had not been passed.

19. The Corporation may make byelaws with respect to the aerodrome undertaking and for maintaining order in and for regulating the use of any premises used in connection therewith and the provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this section except that as regards the confirmation of byelaws relating to the aerodrome and inquiries in relation thereto the Secretary of State for Air shall be substituted for the Minister of Health. Byelaws.

PART IV.

TROLLEY VEHICLES &c.

20.—(1) The Corporation may provide (but shall not manufacture) maintain and equip trolley vehicles and may work the same along any street or road in the city in which they are at the passing of this Act authorised to construct or work tramways and with the consent of the Minister of Transport in any other street or road so far as may be necessary for turning the vehicles. Power to use trolley vehicles.

(2) Provided that—

(a) Before equipping any trolley vehicle route to include a turning point or before arranging

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for a new turning point on any route the Corporation shall submit plans of the turning point to the Minister of Transport for approval;

(b) No turning point shall be fixed upon any road or street belonging to or maintained by a railway company without the consent in writing of such company which consent shall not be unreasonably withheld.

(3) As from the date upon which and so long as a service of trolley vehicles is provided by the Corporation in lieu of a tramway service upon the route of any of their tramways the revenue of the tramway undertaking shall (to such extent as the Corporation may from time to time by resolution determine) cease to be charged with any expenses incurred by the Corporation upon or in connection with the maintenance and repair of roads along the route or routes upon which such service of trolley vehicles is provided under any statutory enactment relating to that undertaking but nothing in this subsection shall relieve the Corporation of any liability attaching to them in respect of such maintenance and repair.

As to electrical works.

21.—(1) The Corporation may in under or over the surface of the streets or roads along or adjoining those along which they are authorised to run trolley vehicles or in which it may be necessary so to do in order to connect the apparatus and equipment for working such vehicles with any generating station place erect and maintain all necessary and proper standards brackets conductors mains cables wires posts poles and any other necessary or convenient apparatus and equipment for the purpose of working the trolley vehicles by electrical power and may for that purpose subject to the provisions contained in Part II of the Tramways Act 1870 and in this Part of this Act open and break up any such street or road and any sewers drains water or gas pipes tubes wires telephonic and telegraphic apparatus therein or thereunder and may supply electrical energy for the purpose of working the trolley vehicles Provided that no post or other apparatus shall be erected on the carriage-way except with the consent of the Minister of Transport.

(2) Nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1928 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section. A.D. 1930.
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(3) The Corporation may also adapt and use for the purpose of working trolley vehicles any apparatus and equipment already provided by them for working tramways in streets or roads along which they are or may be authorised to run trolley vehicles.

(4) In this section the expression “generating station” has the meaning assigned to it by section 25 of the Electric Lighting Act 1909.

22. Subject to the provisions of this Act the Corporation shall have the exclusive right of using any apparatus provided erected or maintained by them for the purpose of working the trolley vehicles and any person (except by agreement with the Corporation) using the said apparatus shall for every offence be liable to a penalty not exceeding twenty pounds. Corporation to have exclusive right of using apparatus for working trolley vehicles.

23.—(1) The trolley vehicles authorised by this Act shall not be deemed to be light locomotives within the meaning of the Locomotives on Highways Act 1896 nor shall they be deemed to be motor cars within the meaning of any provisions of the Motor Car Act 1903 (except subsection (1) of section 1 and the provisions necessary for enforcing that subsection section 6 and the provisions as amended by the Roads Act 1920 relating to the licensing and licences of drivers) and subject to that exception neither the Motor Car Acts 1896 and 1903 nor any byelaws or regulations made thereunder nor the enactments mentioned in the schedule to the Locomotives on Highways Act 1896 nor the Locomotives Act 1898 shall apply to the trolley vehicles. Vehicles not to be deemed light locomotives or motor cars.

(2) The trolley vehicles authorised by this Act shall not be deemed to be omnibuses within the meaning of the Town Police Clauses Act 1889.

24. Nothing in this Act shall in any way affect the duties of excise now payable by law on licences to be taken out for trolley vehicles authorised by this Act as hackney carriages. Licence duties on trolley vehicles.

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Approval of
vehicles by
Minister of
Transport.

25.—(1) The trolley vehicles and the electrical equipment thereof used under the authority of this Act shall be of such form construction weight and dimensions as the Minister of Transport may approve and no trolley vehicle shall be used by the Corporation which does not comply with the requirements of the said Minister.

(2) Before applying to the Minister of Transport for his approval of the weight of any trolley vehicle to be used upon any road which crosses a bridge belonging to or repairable by a railway company the Corporation shall give to such railway company notice of the weight of the trolley vehicles proposed to be used by them and the said Minister shall consider and determine after such inquiry as he may think fit any objections which may be submitted by the railway company to him on the ground that the strength of such bridge is insufficient to carry trolley vehicles of such weight. Provided that notice of such objections shall be forwarded by such railway company to the Corporation at the same time as the same are submitted to the said Minister.

Provisions
as to use of
electrical
power.

26. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the trolley vehicles :—

- (1) The Corporation shall employ either insulated returns or uninsulated metallic returns of low resistance :
- (2) The Corporation shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their trolley vehicle undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :
- (3) The electrical power shall be used only in accordance with the mechanical power regulations and in such regulations provisions shall be made

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for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :

- (4) The Corporation shall be deemed to take all reasonable and proper precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Corporation either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the mechanical power regulations and in prescribing such means the Minister of Transport shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) The provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable and proper precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Corporation and any other party with respect to anything in this section such difference shall unless the parties otherwise agree be determined by the Minister of Transport or at his option by an arbitrator to be appointed by him and the costs of such determination shall be in the discretion of the said Minister or of the arbitrator as the case may be :

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- (7) The Corporation using electrical power contrary to the provisions of this Act or of the mechanical power regulations shall for every such offence be subject to a penalty not exceeding ten pounds and also if a continuing offence to a further penalty not exceeding five pounds for every day during which the offence continues after conviction thereof. Provided always that whether any such penalty has been recovered or not the Minister of Transport if in his opinion the Corporation in the use of electrical power under the authority of this Act have made default in complying with the provisions of this Act or the mechanical power regulations may by order direct the Corporation to cease to use electrical power and thereupon the Corporation shall cease to use electrical power and shall not again use the same unless with the authority of the said Minister and in every such case that Minister shall make a special report to Parliament notifying the making of such order :
- (8) The expression "Corporation" in this section includes licensees and any person owning working or running carriages over any of the trolley vehicle routes.

Application
to trolley
vehicles of
certain pro-
visions of
Tramways
Act 1870.

27.—(1) The following provisions of the Tramways Act 1870 (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act and shall apply to the trolley vehicles authorised by this Act and such provisions shall be read and have effect as if the works to be constructed in the streets or roads for moving the trolley vehicles by electrical power were tramways and as if the said trolley vehicles were carriages used on tramways (namely):—

Part II (Relating to the construction of tramways) except Sections 25 28 and 29;

Section 41 (Tramways to be removed in certain cases);

Section 46 (Byelaws by local authority Promoters may make certain regulations);

- Section 47 (Penalties may be imposed in bye-laws); A.D. 1930.
- Section 48 (Power to local authority to license drivers conductors &c.);
- Section 49 (Penalty for obstruction of promoters in laying out tramway);
- Section 51 (Penalty on passengers practising frauds on the promoters);
- Section 53 (Penalty for bringing dangerous goods on the tramway);
- Section 55 (Promoters or lessees to be responsible for all damages);
- Section 56 (Recovery of tolls penalties &c.);
- Section 57 (Right of user only);
- Section 60 (Reserving powers of street authorities to widen &c. roads); and
- Section 61 (Power for local or police authorities to regulate traffic in roads).

(2) Nothing in this section shall be deemed to exclude a trolley vehicle from the provisions of section 78 of the Highway Act 1835 as to the side of the road on which any wagon cart or other carriage is to be kept.

28. The sections of the following Acts and Orders the marginal notes of which are in this section set forth shall so far as applicable apply with reference to the trolley vehicles authorised by or in pursuance of this Act and the apparatus and equipment for working the same and for the purpose of such application those sections shall be read and have effect as if the works constructed or to be constructed in the streets or roads for moving trolley vehicles by electrical power were tramways and as if the trolley vehicles were carriages used on tramways (namely):—

Application
to trolley
vehicles of
certain pro-
visions of
Acts and
Orders of
Corporation.

The Act of 1898—

- Section 16 (Tramways not to be opened until certified by Board of Trade);
- Section 20 (Temporary tramways may be made where necessary);
- Section 21 (Application of road materials excavated in construction of works);

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- Section 25 (As to fares on Sundays and holidays);
- Section 26 (Provisions as to motive power);
- Section 31 (Byelaws);
- Section 33 (Amendment of Tramways Act 1870
as to byelaws by local authority);
- Section 35 (Orders &c. of Board of Trade).

The Order of 1900—

- Section 11 (Mechanical power works to be subject
to section 30 of Tramways Act
1870).

The Portsmouth Corporation Tramways Order 1909—

- Section 7 (For protection of Postmaster-
General) as amended by this Act;
- Section 8 (Use of tramway posts by Postmaster-
General).

The Act of 1920—

- Section 56 (Attachment of brackets &c. to
buildings);
- Section 58 (Passengers' fares);
- Section 59 (Power to carry parcels on tramways);
- Section 60 (Rates for parcels);
- Section 61 (Revision of tramway fares and
charges);
- Section 62 (Working agreements);
- Section 63 (Purchase of further lands by agree-
ment);
- Section 67 (Passengers' luggage);
- Section 68 (Lost property);
- Section 69 (Shelters or waiting - rooms and
barriers); and
- Section 72 (Penalty for malicious damage):

Provided that references in the said sections of the
Act of 1898 and the said Order of 1909 to the Board of
Trade shall be deemed to refer to the Minister of Transport.

Amendment
of Section 7
(B) (4) of
Order of
1909.

29. Subsection (B) (4) of section 7 (For protection
of Postmaster-General) of the Portsmouth Corporation
Tramways Order 1909 shall be read and have effect as
if the words "generated or used by or supplied to

“ the Promoters for tramway purposes enter any of the A.D. 1930.
“ promoters’ works ” were inserted in that subsection
in substitution for the words “ generated for tramway
purposes at any works of the promoters enter thereon.”

30. The following provisions for the protection of For protec-
the Southern Railway Company (in this section referred tion of
to as “ the railway company ”) shall unless otherwise Southern
agreed in writing between the Corporation and the railway Railway
company apply and have effect in relation to the trolley Company.
vehicles (that is to say) :—

(1) In this section the word “ apparatus ” means
standards brackets conductors mains cables
wires posts poles and any other apparatus and
equipment for the purpose of working trolley
vehicles under or in pursuance of this Act :

(2) The apparatus where the same shall be placed
or erected upon across under or over any bridge
or the approaches thereto or other work belong-
ing to or maintainable by the railway company
or which will otherwise affect the same shall be
placed or erected and maintained according to
plans and particulars to be previously submitted
to and reasonably approved by the railway
company or in case of difference between them
and the Corporation by an arbitrator to be
appointed as hereinafter provided Provided
that if the railway company shall not within
twenty-eight days from the delivery of such
plans and particulars signify their disapproval
thereof they shall be deemed to have approved
thereof :

(3) All apparatus shall be placed or erected under
the superintendence (if such superintendence
be given) and to the reasonable satisfaction of
the railway company The Corporation shall
so place erect maintain and use the apparatus
as not injuriously to affect any such bridge or
approaches or other work and in the event of
any injury being occasioned to such bridge or
approaches or work by the placing erection
maintenance user or removal of the apparatus
upon across under or over the same the railway
company may make good the injury and may

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recover from the Corporation the reasonable expenses of so doing :

- (4) The Corporation shall bear and on demand pay to the railway company the reasonable expense (if any) incurred by the railway company of and in connection with the employment by the railway company during the placing erection maintenance or removal by the Corporation of any apparatus affecting any railway bridge or other work belonging to or maintainable by the railway company of such inspectors, signalmen and watchmen (if any) as may be reasonably necessary for inspecting watching and protecting the said railways and works and the conduct of the traffic thereon with reference to and during the placing erection maintenance or removal of any apparatus of the Corporation and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Corporation or their contractors or any person in the employ of either of them :
- (5) The Corporation shall not in any manner in the placing erection maintenance or removal of any apparatus obstruct or interfere with the free uninterrupted and safe user of any railway belonging to or maintainable by the railway company or any traffic thereon :
- (6) The Corporation shall be responsible for and make good to the railway company all losses damages and expenses which may be occasioned to the railway company or any of their works or property or to any works or property which they may be liable to maintain or to the traffic on their railways or to any company or person using the same by or by reason of the placing erection maintenance or failure of any apparatus or by or by reason of any act default or omission of the Corporation or of any person in their employ or of their contractors in connection with the apparatus and the Corporation shall effectually indemnify and hold harmless the railway company from all claims and demands upon or against them by reason of such placing

erection maintenance or failure or of any such act default or omission : A.D. 1930.

- (7) If the railway company in the exercise of their existing powers shall hereafter require to widen lengthen strengthen reconstruct alter or repair any of their bridges approaches or other works under or upon which the apparatus is laid or to widen or alter any railway thereunder or thereover the Corporation shall afford to the railway company all reasonable and proper facilities for the purpose and if it shall be necessary for such purpose that the apparatus be taken up diverted or removed and if the railway company accordingly give to the Corporation twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such taking up diversion or removal then the working or user of such part of the apparatus shall be stopped or delayed or such part of the apparatus shall be taken up diverted or removed as stated in such notice at the reasonable expense of the Corporation and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purpose as aforesaid and such part of the apparatus shall be restored with all practicable dispatch and the railway company shall not be liable to pay compensation in respect of such stoppage delay or taking up diversion or removal :
- (8) The Corporation shall from time to time pay to the railway company any additional expense which the railway company may reasonably incur in the exercise of their existing powers in effecting such widening lengthening strengthening reconstruction alterations or repairing as is mentioned in the last preceding subsection or in the maintenance of any bridge approach or other work of the railway company by reason of the existence or user of the works or apparatus :
- (9) If and when the railway company shall require to reconstruct alter repair or paint any bridge under which any electric wire of the Corporation

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has been placed under or in pursuance of this Act and if it shall be reasonably necessary for them so to do the Corporation shall in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting cut off the electric current from the trolley wires under such bridge at such time as shall be agreed between the Corporation and the engineer of the railway company or failing agreement as shall be determined by arbitration under this section unless the Corporation shall have previously adopted some other means of protection to workmen which shall have been approved by the said engineer. Provided that the Corporation shall not be required to cut off the electric current at any time for a longer period than shall be absolutely necessary for effecting the purpose of the railway company :

- (10) If having regard to the proposed position of any apparatus when considered in relation to the position of the works of the railway company at any point where any apparatus will be constructed over or under any railway or other works of the railway company it becomes necessary in order to avoid danger from the breaking or falling of wires that any electric telegraphic telephonic or signal wires or apparatus or electrical works or apparatus for traction purposes of the railway company shall be altered the railway company may execute any works reasonably necessary for such alteration and the reasonable expense of so doing shall be repaid to the railway company by the Corporation. Provided that notice of their intention to execute such works shall be given by the railway company to the Corporation :
- (11) Any difference which may arise under this section between the Corporation and the railway company shall be settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

31. Every artisan mechanic or daily labourer travelling on the trolley vehicles for the purpose of going to his work before eight a.m. on any day of the week except Sunday Christmas Day and Good Friday and returning therefrom not earlier than twelve noon on the same day shall for each such double journey be charged a fare not exceeding the fare which the Corporation for the time being charge for each such single journey.

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Reduced
fares for
labouring
classes.

32.—(1) If at any time hereafter the Corporation desire to provide maintain equip and use trolley vehicles upon any road (within the city) as defined by the Tramways Act 1870 (other than the streets and roads along and upon which they are by this Act authorised to use trolley vehicles) they may make application to the Minister of Transport and that Minister is hereby empowered to make a Provisional Order authorising the use by the Corporation of trolley vehicles subject to such conditions and restrictions (if any) as he may think fit upon any road or roads to which such application relates and containing such incidental provisions as the said Minister may deem expedient and subject to the terms of the Provisional Order the provisions of this Act shall apply as if the use of trolley vehicles upon such road were authorised by this Act.

Minister of
Transport
may autho-
rise new
routes.

(2) No such application shall be entertained by the Minister of Transport unless the Corporation shall—

- (a) have published once in each of two successive weeks in the months of October or November notice of their intention to make such application in some newspaper or newspapers circulating in the city ;
- (b) have also published such notice once in the months of October or November in the London Gazette ;
- (c) have posted for fourteen consecutive days in the months of October or November in conspicuous positions in each of the roads to which such application relates a notice of their intention to make such application ;

and each such notice shall state the time and method for bringing before the said Minister any objections to the grant of such application.

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(3) The Minister of Transport may and he is hereby empowered to prescribe the procedure with respect to any application for a Provisional Order under this section.

(4) The Minister of Transport shall consider any such application and may if he think fit direct an inquiry to be held in relation thereto or may otherwise inquire as to the propriety of proceeding upon such application and he shall consider any objection to such application that may be lodged with him in accordance with the prescribed procedure and shall determine whether or not it is expedient and proper that the application be granted either with or without addition or modification or subject or not to any restriction or condition.

(5) In any case where it shall appear to the Minister of Transport expedient that the application be granted he may settle and make a Provisional Order authorising the same and shall as soon as conveniently may be thereafter procure a Bill to be introduced into either House of Parliament for an Act to confirm the Provisional Order which shall be set out at length in the schedule to the Bill and until confirmation with or without amendment by such Act of Parliament a Provisional Order under this Act shall not have any operation.

(6) If while any such Bill is pending in either House of Parliament a petition is presented against any Provisional Order comprised therein the Bill so far as it relates to the Order petitioned against may be referred to a select committee and the petitioner shall be allowed to appear and oppose as in the case of a Bill for a special Act.

(7) The Act of Parliament confirming a Provisional Order under this Act shall be deemed a public general Act.

(8) The making of a Provisional Order under this section shall be prima facie evidence that all the requirements of this section in respect of proceedings required to be taken previously to the making of such Provisional Order have been complied with.

(9) Any expenses incurred by the Minister of Transport in connection with the preparation and making of any such Provisional Order and any expenses incurred by the said Minister in connection with any inquiry under this section shall be paid by the Corporation.

33.—(1) At any time after the passing of this Act the Minister of Transport may by order authorise or require the Corporation to abandon or discontinue temporarily or permanently any of their tramways for the time being along the route of which the Corporation have provided and equipped or are about to provide and equip trolley vehicles under the provisions of this Act or any Provisional Order made thereunder.

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As to
abandon-
ment of
tramways.

(2) Before making any order under the provisions of this section the Minister of Transport may hold such inquiry as he may consider desirable.

(3) Any order made under the provisions of this section may as from such date as may be specified therein provide for the cesser of all or any of the powers liabilities duties or obligations conferred or imposed upon the Corporation by any Act or Order relating to any tramway to be abandoned or discontinued in pursuance of such order.

(4) Upon the making of any such order permanently to abandon or discontinue any such tramway the provisions of section 41 of the Tramways Act 1870 shall apply as if the Minister of Transport had granted a certificate that an order had been made under the said section in relation to such tramway.

(5) If the Corporation under and by virtue of the powers of this Act abandon and discontinue the working of any of their tramways which pass or are situate within two hundred yards of Admiralty property the Corporation shall not less than fourteen days before commencing any work of removal or taking up of such tramways give notice in writing to the Admiralty of their intention so to do and in the execution of the work they shall comply with such directions as the Admiralty may reasonably give for the purpose of avoiding undue interference with any means of access to and damage to Admiralty property.

34. The following provisions for the protection of the Southern Railway Company (in this section referred to as "the railway company") shall unless otherwise agreed between the Corporation and the railway company apply and have effect (that is to say):—

For further
protection
of Southern
Railway
Company.

(1) On the taking up or removal by the Corporation under the section of this Act of which the

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marginal note is "As to abandonment of tramways" of any rails paving apparatus or equipment situate on or attached to any bridge or bridge approaches belonging to or maintainable by the railway company the Corporation shall to the reasonable satisfaction of the railway company restore the surface of any road on such bridge or bridge approaches disturbed by such taking up or removal and make good all damage to any such bridge :

(2) The Corporation shall give to the railway company not less than seven days' previous notice in writing of their intention to carry out any such work as is referred to in subsection (1) of this section and shall state in such notice the place and time at which they propose to commence those works and the railway company may where reasonably necessary employ watchmen or inspectors to watch any of the works and operations of the Corporation and the reasonable cost thereof together with any expense to which the railway company may reasonably be put in consequence of such works and operations shall be borne by the Corporation :

(3) Any difference which may arise under this section between the Corporation and the railway company shall be settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

Tramway
regulations
to apply to
trolley
vehicles.

35. All subsisting regulations and byelaws relating to the tramways of the Corporation made in pursuance of the Tramways Act 1870 or of any other statutory enactment so far as the same are applicable shall with the necessary modifications apply to the trolley vehicles provided by the Corporation in pursuance of this Act.

Trolley vehi-
cles to form
part of tram-
way under-
taking.

36. Subject to the provisions of this Act the trolley vehicle undertaking authorised by this Act shall form part of the tramway undertaking.

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37. The Corporation may if they think fit convey on their tramcars trolley vehicles and omnibuses dogs in the care of passengers the charge for any such dog to be a sum not exceeding the fare payable by the passenger.

As to
charges for
dogs on
tramcars &c.

38. The Corporation may run through tramcars along the route of any of the tramways of the Corporation or any specified portion thereof or through trolley vehicles or omnibuses along any route on which the Corporation are for the time being authorised to run trolley vehicles or omnibuses and such tramcars trolley vehicles and omnibuses shall be distinguished from other tramcars trolley vehicles and omnibuses in such manner as may be directed by the Corporation and they may demand and take for every passenger by such tramcars trolley vehicles and omnibuses a fare or charge not exceeding the maximum fare or charge authorised or chargeable for and in respect of the whole of such route or the whole of the portion thereof traversed by any such tramcars trolley vehicles and omnibuses. Provided that during the running of such through tramcars trolley vehicles and omnibuses the Corporation shall maintain a reasonably sufficient ordinary service of tramcars trolley vehicles or omnibuses as the case may be :

Through
tramcars
trolley
vehicles and
omnibuses.

Provided also that this section shall so far as it relates to motor vehicles (other than tramcars and trolley vehicles) carrying passengers for hire or reward at separate fares or motor vehicles (other than tramcars and trolley vehicles) carrying passengers for hire or reward and adapted to carry eight or more passengers cease to have effect on the passing during the present session of Parliament of any general Act relating to road traffic.

39. The Corporation shall perform in respect of any trolley vehicles provided by them under this Act such services in regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act applies.

Conveyance
of mails.

40.—(1) The Corporation may provide cloakrooms and rooms or sheds for the storage of bicycles and other vehicles at any depot or building used by them in connection with the tramway undertaking and at any suitable places on their tramway trolley vehicle or

Cloakrooms
&c.

A.D. 1930. — omnibus routes and the Corporation may make charges for the use of such cloakrooms and sheds and for the deposit of articles and things and bicycles and other vehicles therein.

(2) The Corporation may use for the purposes of this section portions of the public streets or roads but only with the consent of the road authority which consent shall not be unreasonably withheld and any question as to whether or not any such consent is unreasonably withheld shall be determined by the Minister of Transport.

Saving for
Southern
Railway
Company.

41. The Corporation shall not exercise the powers of the section of this Act of which the marginal note is "Cloakrooms &c." on any bridge or road belonging to or maintainable by the Southern Railway Company nor shall any starting or stopping place be appointed under the section of this Act of which the marginal note is "Corporation may appoint stopping and starting places" on any bridge or road belonging to or maintainable by the said railway company or so as to obstruct the convenient access to or exit from any station depot or other property of the said railway company.

For protec-
tion of
Portsmouth
Gas Com-
pany.

42. For the protection of the Portsmouth Gas Company (in this section referred to as "the gas company") the following provisions shall unless otherwise agreed in writing between the gas company and the Corporation apply and have effect (that is to say):—

(1) The provisions of the Act of 1898 the Order of 1900 the Portsmouth Corporation Tramways Order 1909 and the Act of 1920 and of the Tramways Act 1870 which at the passing of this Act enure for the protection of the gas company in relation to the existing tramways of the Corporation and any equipment used in connection with such tramways shall continue in force and enure for the protection of the gas company until the date when the taking up and removal of the said tramways or any part thereof or the rails paving setts or equipment thereof shall be commenced :

(2) If any injury shall be caused to any main pipe valve syphon or other work or apparatus (all of which are in this section referred to as

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“ apparatus ”) of the gas company during and by reason of the taking up or removal of any of the Corporation's tramways or any part thereof or of the rails paving setts or equipment thereof or the execution by the Corporation of any works for or in connection with such taking up or removal or for or in connection with the restoration of the carriageway or footway disturbed by such taking up or removal the Corporation shall bear and on demand repay to the gas company the amount of the expense reasonably incurred by them in making good such injury and shall indemnify the gas company against all claims demands costs charges and expenses arising out of such injury :

- (3) Any plans and sections which the Corporation are required by section 30 of the Tramways Act 1870 as incorporated with this Act to submit to the gas company shall be submitted to the gas company at least fourteen days before the commencement of any works to which the said plans and sections relate and shall be accompanied by a description of the proposed works and notice of the date on which the Corporation propose to commence the same and if the gas company give any notice under the said section in relation to such proposed works the same shall not be commenced except in case of emergency until the requirements of the gas company have been agreed or settled by arbitration as by such section is provided :
- (4) The power of the gas company under the said section 30 to require the lowering or other alteration of their apparatus shall be deemed to extend so as to authorise the gas company to require the shoring up or supporting and restoring and protecting of any such apparatus which it may be reasonably necessary to shore up support restore or protect by reason of the execution of any of the works of the Corporation or for preventing any interruption in the supply of gas by the gas company :
- (5) All such works as are referred to in subsection (3) or subsection (4) of this section shall be done

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under the superintendence and to the reasonable satisfaction of the gas company or their engineer and the reasonable costs charges and expenses of such superintendence shall be paid to the gas company by the Corporation and if the gas company before the Corporation are entitled to commence any such work elect by notice in writing to the Corporation so to do the gas company may themselves execute any work relating to any apparatus of the gas company to which any such notice or requirement as aforesaid relates and to the reasonable satisfaction of the engineer of the Corporation and the amount reasonably expended by the gas company in so doing shall be repaid to them by the Corporation but if for seven days after giving any such notice the gas company do not proceed with due diligence to execute any such work as aforesaid the Corporation may forthwith execute the same :

- (6) If any structure erected by the Corporation under section 69 (Shelters or waiting rooms and barriers) of the Act of 1920 or the section of this Act of which the marginal note is "Cloak-rooms &c." is situate over any apparatus of the gas company laid or placed before the erection of such structure and the gas company give to the Corporation notice in writing of their desire to obtain access to such apparatus the Corporation shall either remove temporarily such structure or so much thereof as shall require to be so removed in order to afford such access or (if the Corporation determine not to remove such structure or part thereof) bear any additional expense due to the existence of such structure which may be reasonably incurred by the gas company in obtaining such access :
- (7) Any difference which shall arise between the gas company and the Corporation under this section shall be referred to and settled by an arbitrator to be appointed failing agreement on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject

as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and settlement. A.D. 1930.

43. The Corporation may appoint the stations and places from which their omnibuses shall start or at which they may stop for the purpose of taking up and setting down passengers and may fix the time during which such omnibuses shall be allowed to remain at any such station or place : Corpora-
tion may
appoint
stopping
and starting
places.

Provided that this section shall cease to have effect on the passing during the present session of Parliament of any general Act relating to road traffic.

44.—(1) The Corporation may attach to any lamp-post pole standard or other similar erection erected on or in the highway on or near to any of the tramways of the Corporation or any of their trolley vehicle or omnibus routes signs or directions indicating the position of stopping places for tramcars trolley vehicles and omnibuses Attachment
of signs
indicating
stopping
places to
lamp-posts
&c.
Provided that in cases where the Corporation are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to such lamp-post pole standard or similar erection by such attachment and the Corporation shall indemnify the said owner against any claim for damage occasioned to any person or property by or by reason of such attachment.

(2) Nothing in this section shall be deemed to require the owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Corporation shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing or belonging to any local or road authority except with the consent of the authority in writing.

(4) The Corporation shall not attach any such sign or direction to any lamp-post pole standard or other similar erection belonging to the Southern Railway Company or to the Portsmouth Gas Company or to the Central Electricity Board respectively without the consent in

A.D. 1930. writing of such company or board which consent in the
— case of the said gas company shall not be unreasonably
withheld.

Accounts of
tramway
under-
taking.

45. The Corporation shall keep the accounts in respect of the tramway undertaking so as to show separately (so far as may be reasonably practicable) the receipts and expenditure in regard to (a) the tramways (b) the trolley vehicles and (c) the omnibuses which the Corporation are empowered to provide and run and in such accounts capital shall be distinguished from revenue.

Accounts to
be furnished
to Minister
of Trans-
port.

46. The Corporation shall in every year within three months after the close of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of the tramway undertaking.

Inquiries by
Minister of
Transport.

47. In respect of the exercise of any powers or duties conferred on the Minister of Transport or the giving by him of any consents under any Act or Order of the Corporation the provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

Repeal.

48. Section 70 (Power to enforce queue system on tramways) of the Act of 1920 is hereby repealed.

PART V.

ELECTRICITY.

Supply to
premises
partly out-
side elec-
tricity
limits.

49. The Corporation may by agreement supply electrical energy to any house or building which or the curtilage of which is partly within and partly outside the electricity limits in the same manner as if such premises were wholly within such limits.

Use for
lighting
purposes of
electricity
supplied for
power.

50.—(1) No consumer to whom electricity is supplied by the Corporation shall without the consent in writing of the Corporation use or suffer to be used (whether after transformation or conversion or not) for purposes of lighting or illuminating or for any process operation or

purpose involving or requiring the use of light (all of which purposes are in this section referred to as "lighting purposes") the whole or any part of any electricity supplied to him by the Corporation for any other purpose. A.D. 1930.
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(2) Any consumer who without such consent shall use or suffer to be used for lighting purposes electricity supplied to him by the Corporation through a meter fixed for the purpose of ascertaining the value of the supply to him of electricity agreed to be supplied to him for any purpose other than lighting purposes shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and shall in addition be liable to pay to the Corporation at such higher rate as they may for the time being be charging for the supply of electricity for the purpose for which the electricity is used by the consumer for all or any portion of the electricity which has been supplied to him for any other purpose within one year previous to the date when the Corporation shall sue for any penalty as aforesaid.

(3) Any court having jurisdiction to impose such penalty may and on the application of the Corporation shall decide as to the portion (if any) of such electricity in respect of which the higher charge as aforesaid shall be payable to the Corporation.

(4) The provisions of section 18 of the Electric Lighting Act 1909 shall apply to any person whom the Corporation have reasonable grounds for believing to be acting contrary to the provisions of this section.

51.—(1) The maximum electrical power with which any consumer shall be entitled to be supplied by the Corporation shall not include any supply of electricity taken on extraordinary occasions or as a stand-by supply unless such consumer shall pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Corporation in order to meet the possible maximum demand for the premises of such consumer the sum so to be paid to be determined in default of agreement by arbitration in the manner provided by section 28 of the Electric Lighting Act 1882. As to maximum power which may be demanded.

(2) The provisions of this section shall not operate to deprive any consumer of electricity supplied by the

A.D. 1930. Corporation under the terms of any agreement existing at the passing of this Act of any right to which he would be entitled but for the said provisions.

As to
method of
charge in
certain
cases for
fittings.

52.—(1) In any case in which the Corporation have fixed or set up or shall hereafter fix or set up in any dwelling-house or part of a dwelling-house any lamps meters electric lines fittings motors apparatus and things for lighting or motive power or for any other purposes for which energy can or may be used (all of which are in this section referred to as and included in the expression “fittings”) the Corporation may make and recover from the owner or occupier for the time being of such dwelling-house or part of a dwelling-house such charges as they may determine by way of consideration for the provision and laying fixing or setting up and maintenance of such fittings and of the whole or part of so much of the service cable as is laid upon the property of the owner or in the possession of the occupier of such dwelling-house or part of a dwelling-house and for the purposes of the Electricity (Supply) Acts 1882 to 1928 the said fittings and portion of service cable shall subject as hereinafter provided be the property of the Corporation :

Provided that—

- (a) the basis on which such charges are to be determined shall be such as shall be approved by the Electricity Commissioners;
- (b) the owner or occupier for the time being of any such dwelling-house or part of a dwelling-house as aforesaid shall be entitled at any time to require—
 - (i) that the charge made by the Corporation as aforesaid shall be commuted by the payment of a sum in gross equal to the balance for the time being outstanding in the books of the Corporation in respect of the capital expenditure incurred by them in the provision laying fixing or setting up of the fittings in such dwelling-house or part of a dwelling-house and upon such payment the said fittings shall become the property of such owner or occupier; or

A.D. 1930.
—

(ii) that in lieu of making such charges as aforesaid after the date of such requirement the Corporation shall as from that date enter into an agreement with him under which the fittings provided and laid fixed or set up by the Corporation in such dwelling-house or part of a dwelling-house will become vested in him at the expiration of such period not exceeding five years as such owner or occupier may require in consideration of the payment by him to the Corporation during that period of annual or other periodical instalments of such amount as may be agreed between him and the Corporation;

and as from the date of any such payment as is referred to in the foregoing paragraph (i) or the expiration of any such period as is referred to in the foregoing paragraph (ii) the Corporation shall cease to be liable for the maintenance of such fittings as aforesaid;

(c) the owner or occupier for the time being of such dwelling-house or part of a dwelling-house (not being the owner or occupier on whose application or with whose consent the fittings were laid fixed or set up) shall be entitled at any time to require the Corporation to remove and the Corporation shall on being so required remove the said fittings belonging to them.

(2) The Corporation may require that the whole or any part of any sum payable pursuant to this section shall be paid quarterly in advance.

(3) The Corporation shall have the like remedies in the event of non-payment of any sum payable pursuant to this section and the like rights of recovery of any such sum as they have under the provisions of the Electricity (Supply) Acts 1882 to 1928 and the Electric Lighting (Clauses) Act 1899 with respect to charges for electricity.

(4) Nothing in this section shall alter or affect any agreement for the time being subsisting between the Corporation and the owner or occupier of any such dwelling-house or part of a dwelling-house as aforesaid.

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(5) Notice of the provisions of this section shall be given to the owner of any dwelling-house or part of a dwelling-house when the Corporation fix or set up therein any fittings and also to the occupier of such dwelling-house or part of a dwelling-house when such occupier makes application to the Corporation for a supply of electricity thereto.

Power to
recover cost
of cutting
off supplies.

53. In any case in which the Corporation lawfully cut off a supply of electricity by reason of any act omission or default of a consumer or any other person they may recover from the person to whom the supply was theretofore furnished or from any other person on account of whose act omission or default such supply was cut off the reasonable expenses incurred by them in such cutting off in like manner as charges for electricity are recoverable by the Corporation.

Further
powers as to
entry upon
premises.

54.—(1) The powers conferred by section 24 of the Electric Lighting Act 1882 of entering premises for the purposes mentioned in that section shall extend to enable the Corporation to enter any premises to which electricity is or has been supplied by them (whether for the time being occupied or not) and in or upon which they have reason to believe that there is or has been any contravention of any of the Acts or Orders relating to the electricity undertaking or of any byelaw or regulation made thereunder and to inspect such premises and any electric lines wires fuses casings switches fittings lamps lampholders or other apparatus therein and in any case in which any such contravention is found to exist or to have existed to cut off and disconnect the supply of electricity to the premises.

(2) Where any premises which the Corporation are entitled to enter in pursuance of the said section 24 section 16 of the Electric Lighting Act 1909 or this section are unoccupied the Corporation may after giving not less than forty-eight hours' notice to the owner thereof or if he be unknown to them and if he cannot be ascertained by them after diligent inquiry by affixing such notice upon a conspicuous part of the premises forcibly enter the same doing no unnecessary damage.

(3) Any person who shall refuse or neglect to admit any officer appointed by the Corporation to any premises which he is entitled to enter in pursuance of the said

section 24 the said section 16 or this section or shall hinder any such officer from entering any such premises or from exercising the powers contained in any of the said sections shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. A.D. 1930.

(4) The provisions of this section shall not apply to or in respect of any building or premises (not being a dwelling-house) belonging to and used by any railway or canal company for the purposes of their railway or canal and forming part of any station or goods depôt.

55. The powers of the Corporation under section 21 of the Electric Lighting Act 1882 of cutting off supplies of electricity and cutting or disconnecting electric lines or works and of recovering the expenses incurred in such cutting off shall be exerciseable in any case in which any part of any charge or sum due to the Corporation for electricity supplied by them or in respect of any apparatus or fitting let on hire by the Corporation or supplied by them on hire purchase terms and which the Corporation are under obligation to maintain remains unpaid after the expiration of such period from the date of demand thereof as the Corporation may from time to time determine. Power to cut off supplies where charges remain unpaid.

56. Where a separate transformer is provided at the expense of the Corporation for the purpose of affording a supply of electricity to any consumer the Corporation may use such transformer for the purpose of affording a supply of electricity to other consumers so long as such use does not prejudice or interfere with the supply for which such transformer was originally provided. As to use of transformers.

57. A notice to the Corporation from a consumer for the discontinuance of a supply of electricity shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Corporation or be given by the consumer personally at such office. Notice to discontinue supply of electricity.

58. In the event of a meter of a construction and pattern approved by the Board of Trade or Minister of Transport used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the Period of error in defective meter.

A.D. 1930; — then last preceding quarter of the year unless it is proved to have first arisen during the then current quarter. The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and any such surcharge shall be recoverable in the like manner as charges for electricity are recoverable by the Corporation.

Attachment
of brackets
&c. to build-
ings.

59. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the purposes of the electricity undertaking :

Provided that—

- (1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a court of summary jurisdiction who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :
- (2) Any consent of an owner and any order of a court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the court shall have the same power as under proviso (1) :
- (3) The owner may require the Corporation temporarily to remove the attachments where necessary during any reconstruction or repair of the building :

- (4) No brackets wires and attachments shall be attached to any bridge or other work of the Southern Railway Company without the previous consent in writing of that company. A.D. 1930.
—

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

60. The Corporation for the purpose of preventing fire in or injury to any building or premises supplied with electricity by the Corporation or injury to any person may make byelaws with respect to the nature material workmanship and mode of arrangement of the wires apparatus and fittings in any such building or premises and required or used for the purpose of such supply and the provisions of section 6 of the Electric Lighting Act 1882 shall apply to any byelaws made under this section. Provided that nothing contained in this section or in any byelaw to be made thereunder shall apply to or in respect of any building or premises (other than a dwelling-house) belonging to a railway or canal company. Byelaws as to apparatus and fittings.

61. The Corporation may levy and recover such charges as they think fit for taking at the request of and for the convenience of any consumer at a time other than that of the periodical meter readings the reading of any electricity meter fixed in any premises provided that such charges shall not exceed the sum of two shillings and sixpence for each reading. Charges for special readings of electricity meters.

62. Section 77 (Power to lay electric mains in private streets) of the Act of 1920 shall extend and apply throughout the limits within which the Corporation are from time to time authorised to supply electricity. Extension of power to lay mains in private streets.

PART VI.

FINANCE.

63.—(1) The Corporation may in addition to any moneys which they are now authorised to borrow or which they may be authorised to borrow under the Power to borrow and repayment of borrowed moneys.

A.D. 1930. — provisions of any public general Act borrow at interest for the purposes set forth in the first column of the following table any sums not exceeding the respective sums set forth in the second column thereof and all moneys so borrowed shall be chargeable on the revenues of the Corporation and shall be repaid within the respective periods set forth in the third column thereof and the Corporation may apply any sum so borrowed for the said purposes respectively (that is to say) :—

Purpose.	Amount.	Period for repayment.
(1) For paying the costs charges and expenses of this Act as hereinafter defined.	The sum requisite	Five years from the passing of this Act.
(2) For the purchase of lands -	£77,000	Sixty years from the date or dates of borrowing.
(3) For the purposes of the section of this Act of which the marginal note is " Aerodrome undertaking."	£65,000	Twenty-five years from the date or dates of borrowing.

(2) The Corporation may also with the sanction of the Minister of Transport borrow such moneys as may be necessary for any purpose of the tramway undertaking.

(3) The Corporation may also with the sanction of the Electricity Commissioners borrow such moneys as may be necessary for any purpose of the electricity undertaking.

(4) The Corporation may also with the sanction of the Minister borrow such further moneys as may be necessary for any of the purposes of this Act other than Part IV (Trolley vehicles &c.) and Part V (Electricity).

(5) Any moneys borrowed under the powers of subsections (2) (3) and (4) of this section shall be repaid within such periods not exceeding sixty years as may be prescribed by the authority with whose sanction such moneys are borrowed and all moneys so borrowed shall be chargeable on the revenues of the Corporation.

64. The provisions contained in the sections of the Act of 1920 the numbers and marginal notes of which are set forth in this section shall so far as applicable extend and apply as if they were re-enacted in this Act (that is to say) :—

—
Incorporation of financial provisions of Act of 1920.

Section 142 (Mode of raising money);

Section 143 (Provisions of Public Health Act 1875 as to mortgages to apply);

Section 144 (Mode of payment off of money borrowed);

Section 145 (Sinking fund);

Section 146 (Appointment of receiver); and

Section 148 (Application of money borrowed):

Provided that the periods for repayment referred to in the section of this Act the marginal note of which is "Power to borrow and repayment of borrowed moneys" shall respectively be deemed to be "the prescribed period" for the purposes of such application of the said sections:

Provided also that the said sections shall be read and have effect as if the Minister were referred to therein in lieu of the Local Government Board.

65.—(1) The town clerk shall if and when he is requested by the Minister so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

Returns as to sinking fund.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the treasurer or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

A.D. 1930.

(3) If it appear to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Section 154 (Returns as to sinking funds) of the Act of 1920 is hereby repealed.

Consoli-
dated loans
fund.

66.—(1) Notwithstanding anything contained in this Act or any other Act or Order on and after the thirty-first day of March one thousand nine hundred and thirty-one the Corporation may (if they think fit) establish a fund to be called “the consolidated loans fund” to which shall be paid—

- (a) all moneys borrowed by the Corporation whether by issue of bonds stock or other security together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose; and
- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys

so borrowed or received and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established. A.D. 1930.
—

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

(a) in the redemption of stock or any other securities issued by the Corporation the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Corporation; and

(b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation :

And the moneys of the consolidated loans fund not used or applied in these ways or about to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the accumulations arising from the investments thereof shall not except with the consent of the Minister be used or applied otherwise than as provided in this subsection.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet the interest charged and the financing and other revenue expenses connected with the management of that fund and separate accounts shall be kept of these sums and their application.

(4) The Corporation may pay into the consolidated loans fund any moneys forming part of any reserve renewals depreciation contingent insurance superannuation or other similar fund (hereinafter referred to as "the lending fund") and not for the time being required and such moneys shall be deemed to be moneys borrowed by the Corporation within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions :—

(a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established; and

A.D. 1930.
—

(b) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the average rate of interest payable by the Corporation on their current borrowings.

(5) Subject to any priority existing at the passing of this Act all bonds stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

(6) Save as in this section expressly provided all the obligations of the Corporation to the holders of bonds stock or other securities of the Corporation shall continue in force.

(7) Nothing in this section shall apply to moneys borrowed from the Public Works Loan Commissioners.

(8) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

Application
of revenue
and pay-
ment of
expenses
of trading
under-
takings.

67.—(1) All money received by the Corporation on account of the revenue of any undertaking of the Corporation as from time to time existing from which revenue is derived shall be carried to and shall form part of the revenue for that year of the general rate fund and all payments and expenses made and incurred in respect of any such undertaking in the same year shall be paid out of that fund.

(2) Nothing contained in this section shall be deemed to authorise the Corporation to apply or dispose of the surplus revenue of the electricity undertaking otherwise than in accordance with the provisions of section 43 of and the Fifth Schedule to the Electricity (Supply) Act 1926.

(3) The Corporation may (if they think fit) apply money received by them on account of the revenue of any undertaking of the Corporation as from time to time

existing from which revenue is derived (other than the electricity undertaking) in the construction renewal extension and improvement of the works and conveniences for the purposes of such undertaking. A.D. 1930.

68.—(1) The Corporation may (if they think fit) provide a reserve fund in respect of each of the following undertakings namely the tramway undertaking the electricity undertaking the aerodrome undertaking their Camber Dock and Flathouse Wharf undertaking their South Parade Pier undertaking and their markets undertaking as from time to time respectively authorised by setting aside such an amount as they may from time to time think reasonable and (if they invest the amount so set aside or any part thereof) investing the same in statutory securities and accumulating the same until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation which maximum shall not exceed (except in the case of the tramway undertaking) a sum equal to one-fifth of the expenditure from time to time standing to the capital account of the undertaking in respect of which such fund is formed. Reserve funds for trading undertakings.

(2) Any reserve fund or contingency fund which has been formed for the purpose of any such undertaking and which is in existence at the passing of this Act shall be deemed to have been formed under this section for the purpose of that undertaking.

(3) Any reserve fund formed under this section shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking in respect of which it is formed or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking or for payment of the cost of renewing any part of the works forming part thereof or for any extension of the said works or otherwise for the benefit of that undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(4) Resort may be had to any such reserve fund although it may not at the time have reached or may have been reduced below the prescribed maximum.

A.D. 1930.
—
Accounts.

69.—(1) The Corporation shall keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings of the Corporation as from time to time existing from which revenue is derived (each of which is in this section separately referred to as “the undertaking”) on the one side all receipts in respect of the undertaking including the income from any reserve fund authorised in connection with such undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say):—

- (a) The working and establishment expenses and cost of maintenance of the undertaking;
- (b) The interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) All other expenses (if any) of the undertaking properly chargeable to revenue; and
- (e) The amount (if any) paid to any reserve fund which the Corporation are from time to time authorised to maintain.

(2) The Corporation shall show in their accounts relating to any undertaking or purpose all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

Date of
operation of
certain sec-
tions and
repeal.

70.—(1) The sections of this Act of which the marginal notes are “Application of revenue and payment of expenses of trading undertakings” “Reserve funds for trading undertakings” and “Accounts” shall

be deemed to have come into operation on the first day of April one thousand nine hundred and thirty. A.D. 1930.

(2) As from the said date the following enactments are repealed :—

Portsmouth Docks Act 1859—

Section XXIX (Money to be carried to the credit of the dock account); and

Section XXX (Application of monies).

The Portsmouth Camber Quays Act 1868—

Section 24 (Application of rates).

Landport Wharf Act 1883—

Section 21 (Application of rates).

Portsmouth Corporation Tramways Act 1898—

Section 56 (Application of revenue); and

Section 57 (As to deficiency in receipts).

Portsmouth Camber Quays Order 1898—

Section 22 (Application of harbour rates to maintenance &c. of works).

Portsmouth Corporation (South Parade Pier) Order 1907—

Section 22 (Contingency fund);

Section 23 (Application of revenue); and

Section 24 (Deficiency of revenue to be charged on borough fund).

71. The provisions of section 79 of the Public Health Act 1925 shall apply in relation to any sums set apart as a sinking fund or a redemption fund for the purpose of paying off moneys borrowed by the Corporation in the exercise of any statutory borrowing power as if all such moneys had been borrowed by the Corporation in exercise of their powers under the Public Health Act 1875.

Application of section 79 of Public Health Act 1925.

72.—(1) The Corporation may from time to time appoint and pay one or more members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors or of the London Association of Accountants Limited to act as auditor or auditors of

Appointed auditors.

A.D. 1930. — the accounts of the Corporation in such manner as the Corporation direct in lieu of the auditors appointed under the Municipal Corporations Acts Any auditor or auditors appointed by the Corporation under the provisions of this section and for the time being holding office is or are in this section referred to as "the appointed auditor."

(2) If and while the Corporation exercise the powers of subsection (1) of this section section 25 of the Municipal Corporations Act 1882 shall not apply within the city.

(3) Every appointment of an auditor or auditors under this section shall be in writing under the seal of the Corporation and may be for such term and subject to such conditions as the Corporation may think fit.

(4) Subsection (1) of section 27 of the Municipal Corporations Act 1882 shall apply and have effect as if the appointed auditor had been referred to therein instead of the borough auditors and in addition the appointed auditor shall be entitled to require from any officer of the Corporation all such papers books accounts vouchers sanctions for loans information and explanations as may be necessary for the performance of his duties.

(5) The appointed auditor shall include in or append to any certificate given by him with reference to the accounts of the Corporation such observations and recommendations (if any) as he may deem necessary or expedient with respect to the accounts and any matter arising thereout or in connection therewith.

Motor insurance fund.

73. The Corporation may if they think fit form a fund (to be called the "motor insurance fund") to provide for meeting any liability that may be incurred by them in respect of any injury or damage to any person or property occasioned by any petrol-driven or other motor vehicle of the Corporation and such fund shall be formed by annually appropriating thereto such sums as they may from time to time deem expedient out of any revenues of the Corporation which are properly chargeable therewith and such fund and the interest thereon (except to the extent from time to time required for meeting any such liability as aforesaid or to defray any expenditure in consequence thereof) shall be invested in statutory securities.

74. If any moneys are payable to a mortgagee stockholder or holder of housing bonds being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation.

A.D. 1930.
—
Receipt in
case of per-
sons not sui
juris.

75. All expenses incurred by the Corporation in carrying into execution the provisions of this Act with respect to which no other provision is made shall be defrayed out of the general rate fund and the general rate.

Expenses of
execution of
Act.

PART VII.

MISCELLANEOUS.

76.—(1) Subject to the provisions of this section the Corporation may accept hold and administer any gift of property whether real or personal for any public purpose connected with the city and may execute any works (including works of maintenance or improvement) incidental to or consequential on the exercise of the powers conferred by this section and where the purposes of the gift are purposes for which the Corporation are empowered to expend money raised from the local rate they may subject to any condition or restriction attaching to such power expend money so raised in the execution of such works in relation to the subject-matter of the trust.

Acceptance
and admini-
stration of
gifts for
public pur-
poses.

(2) This section shall not extend to property relating to affairs of the Church within the meaning of the Local Government Act 1894 or to an ecclesiastical charity within the meaning of that Act.

(3) Accounts of the income and expenditure of the Corporation under this section shall be kept by the treasurer and shall be made up and audited as part of the general accounts of the Corporation.

77. Notwithstanding anything contained in the Second Schedule to the Municipal Corporations Act 1882 the summons to members of the council may be delivered at the usual place of abode of each member of the council by post by prepaid letter at the ordinary rate of postage.

Service of
summons on
members of
council.

78. All consents given by the Corporation under the provisions of this Act or of any local enactment order byelaw or regulation for the time being in force within

Consents of
Corporation
to be in
writing.

A.D. 1930. — the city shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk or other duly authorised officer of the Corporation.

Compensation how to be determined.

79. When any compensation costs damages or expenses is or are by any local enactment from time to time in force within the city directed to be paid and the method of determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts. Provided that where any such compensation costs damages or expenses is or are directed or authorised to be paid or recovered in addition to any penalty for any offence the amount of such compensation costs damages or expenses in case of dispute may be ascertained by the court before whom any offender is convicted.

Information by whom to be laid.

80.—(1) Save as otherwise expressly provided all informations and complaints under or for the breach of any local enactment from time to time in force within the city under which the Corporation or any of their officers are empowered to take proceedings may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the city.

(2) Section 183 (Informations by whom to be laid) of the Act of 1920 is hereby repealed.

Recovery of penalties &c.

81. Save as otherwise expressly provided all offences against this Act and all fines forfeitures penalties costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs and expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of demands.

82. Proceedings for the recovery of any demand made under the authority of this Act whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

83. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

A.D. 1930.

Saving for
indictments
&c.

84. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee (as the case may be) may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Powers of
Act cumu-
lative.

85.—(1) If by reason of the exercise by the Corporation of any of the powers conferred upon them by this Act any damage shall be caused directly or indirectly to any Admiralty lands mains drains cables or other property whatsoever such damage shall by and at the expense of the Corporation be made good to the reasonable satisfaction of the Admiralty. If the Corporation shall fail forthwith to make good such damage the Admiralty may do such work and things as may be necessary for this purpose and may recover from the Corporation the cost reasonably incurred in so doing.

For protec-
tion of
Admiralty
property.

(2) The Corporation shall not permit any of their tramcars or trolley vehicles to stop or stand opposite or near to the main entrances of any Admiralty establishment in such manner as to interfere with or interrupt the approach and departure of vehicles and persons to and from such main entrances.

86. Nothing in this Act contained authorises the Corporation—

For protec-
tion of War
Depart-
ment.

(1) to take enter upon use or interfere with any land soil or water or any right in respect thereof for

A.D. 1930.
—

the time being vested in or in the occupation of or exercised or exerciseable by His Majesty's Principal Secretary of State for the War Department (in this section referred to as "the Secretary of State") or in of or by any other person body or corporation acting for or on behalf of the Secretary of State without his consent signified in writing under his hand which consent he is authorised to give subject to such special or other conditions as he shall see fit to impose on the Corporation; or

- (2) to take away lessen prejudice or alter any rights privileges or powers vested in or exercised or exerciseable by the Secretary of State without such consent as aforesaid.

Costs of
Act.

87. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or out of such other funds and in such proportions as the Corporation shall determine or out of moneys to be borrowed under this Act for that purpose.

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